Office of Research Assurance

Human Subject Research Protections Standard Operating Procedures (SOP)

ORA- 730: Recruitment and Compensation

Number	Effective Date	Version Number	Previous Versions
730	10/20/2024	v.1	n/a

Purpose

ORA 730 outlines the requirements for recruitment methods and materials, including compensation, for human research participant activities.

The NASA Institutional Review Board (IRB) is responsible for reviewing methods and materials to recruit potential human research participants to ensure that participant selection is equitable, enrollment efforts minimize undue influence to participate, the privacy rights of prospective participants are protected, and the content, comprehensibility, and voluntariness of the methods used are ethical (14CFR1230.111, 21CFR56.111).

Recruitment activities are systematic efforts to announce, publicize, or advertise a research study seeking human research participation and/or efforts to encourage potential participants to enroll in a research study. Recruitment materials may include advertisements/marketing, flyers, posters, scripts, social media or other internet postings, direct contact, phone calls (cold calls), messaging, newspaper publications, radio or television broadcasting, or other media avenues.

Generally, recruitment methods encompass the use of materials, compensation, and other practices or procedures to inform potential participants about the research. Certain recruitment methods, such as social media recruitment, have additional ethical considerations given the platforms are dynamic, can allow for interaction, and the Federal regulations do not provide specific guidance on the review of such recruitment activities.

Lastly, compensation may be offered as an incentive or reimbursement for research participants or their legally authorized representative for time, effort, or out-of-pocket expenses related to research participation. Incentives may include monetary or non-monetary remuneration including payment in the form of cash or gift cards or other gifts/merchandise or services offered such as vouchers, equipment, or course credit. Alternatively, reimbursement may include covering the costs of transportation, lodging, etc. The NASA IRB is responsible for reviewing compensation (rates, payment methods, payment schedules, reimbursement) to ensure it does not unduly influence research participation.

Policy

1. Individuals who solely:
    a. Inform prospective participants about the availability of research,
    b. Provide prospective participants with information about the research but do not obtain participants' consent or act as representatives of the investigators,
    c. Provide prospective participants with information about contacting investigators for information or enrollment, and/or
    d. Seek or obtain the prospective participants' permission for investigator to contact them

    are not considered engaged in human subjects research and thus are not key research personnel.

2. All recruitment methods and materials must be approved by the NASA IRB prior to implementation. Informed consent briefing presentations used by ROI do not need to be reviewed by the NASA IRB, as these documents are created from NASA IRB approved documents and language.
3. Amendments to approved recruitment methods/materials or compensation/incentive plans must be reviewed and approved by the NASA IRB prior to implementation.
4. Recruitment methods
    a. Must ensure equitable selection, maintain confidentiality and privacy, and minimize coercion and undue influence of potential participants,
    b. Must be fair, where risks and potential benefits from research are shared equitably, and
    c. Must be outlined in the IRB protocol, including the following:
        i. How potential participants will be identified
        ii. Who will approach/recruit participants
        iii. What and how information will be presented/used for participant recruitment
            1. When using direct messaging, participants must be given an "opt out" option
            2. Use secure methods of contact when able and appropriate
        iv. When recruitment will take place
            1. Limiting the number of unsolicited contacts
        v. Where recruitment will take place
5. Recruitment materials
    a. Must include:
        i. Name of the Principal Investigator and institution conducting the research
        ii. A statement that the activity is research
        iii. Brief description of the research purpose
        iv. Brief list of study procedures
        v. Eligibility criteria
        vi. Time commitment, when applicable
        vii. Compensation/incentives, when applicable
        viii. Contact information
    b. May not include:
        i. Personally identifying information
        ii. Exculpatory language
        iii. Claims of positive research results/findings for the study being proposed
        iv. Confidential information
        v. Terms or presentation of material that may be coercive or unduly influence participation, including overemphasis of compensation

vi. Promises of free services when there is no cost to participants or discount on the test product once it is FDA approved
vii. Terms or presentation of material that may convey time sensitive enrollment

6. Protocols proposing to use social media for study recruitment must also include the following additional information within the IRB application:
    a. Social media platform name
    b. Study name to be used on the platform
    c. Social media account holder/account manager
    d. Intended audience and rationale
    e. Content
    f. Posting frequency
    g. Audience interaction/identifiability (including reposting, management of comments/community [process and responsible parti(es)])
    h. Privacy settings
    i. Plans for account closure/removal of recruitment post
    j. Whether data will be collected as part of social media recruitment and if so, what data and an outline of all data security measures
7. Compensation
    a. Must not unduly influence or coerce participation either by fact or appearance
    b. Should be pro-rated when possible
    c. When involving a gift card must disclose any associated fees to participants
    d. Should be distributed equally across participants (special considerations may be given for civil servant vs non-civil servant participants, cultural differences in the international setting etc.)
    e. Should not introduce additional harms without mitigation
    f. Must not be considered a benefit of research participation
    g. Must be described in detail in the informed consent form (including a statement about taxable income when applicable, pro-rating in relation to withdrawal, etc.)
    h. In the form of payments in exchange for referrals are not permitted (finder's fee)
    i. Involving the lottery are subject to additional ethical and legal considerations per state law
    j. Drawings must outline one's chances of receiving compensation and must outline that all individuals who are contacted will be allowed to enter the drawing including:
        i. Those who opt out of participation
        ii. Those found to be ineligible
        iii. Enrolled participants
        iv. Withdrawn participants
    k. records (payments or reimbursement to participants) must be kept for a minimum of 3 years after the close of the IRB protocol
    l. receipt does not require participants include their names or social security numbers for a proposed research activity when the IRB has approved a waiver of documentation of informed consent per 14CFR1230.117(c)/21CFR56.109(c) or if a Certificate of Confidentiality has been issued by the National Institutes of Health. Either a Principal Investigator can sign to verify or a checkmark may be used in lieu of a signature to indicate receipt of an incentive.
8. Additional regulations may apply in special circumstances, such as the Privacy Rule, FERPA, DoD, etc. and will be determined by the NASA IRB on a case-by-case basis.

Responsibilities

In addition to the outlined requirements above, principal investigators must also:

1. make a reasonable effort to ensure open access to research opportunities as able,
2. design recruitment methods and materials that are free from bias,
3. comply with Federal and state regulation as well as ethical standards,
4. ensure all recruitment materials are accessible to individuals with disabilities in compliance with the Americans with Disabilities Act,
5. comply with all Terms of Use and restrictions on social media sites when utilized as a recruitment method, and
6. ensure they have the rights to use any images etc. in recruitment materials.

The NASA IRB must:

1. ensure all required information for recruitment methods and materials are included in the IRB application
2. ensure recruitment methods/material comply with Federal and state regulation as well as ethical standards, specifically, determine if the outlined recruitment methods/materials confirm that participant selection is equitable, enrollment efforts minimize undue influence to participate, the privacy rights of prospective participants are protected, and the content, comprehensibility, and voluntariness of the methods used are ethical
    a. considerations should include:
        i. justification of proposed methods/materials
        ii. number and frequency of contacts
        iii. intrusiveness
        iv. potential for coercion/undue influence
        v. protocol specific/participant specific details (such as medical status, employment status, educational status, socioeconomic status, availability of resources – financial, emotional, community, medical)
        vi. secondary participant privacy concerns (such as the use of family members)

Definitions

Coercion – an overt or implicit threat of harm is intentionally presented by one person to another in order to obtain compliance

Compensation - an incentive or reimbursement for research participants or their legally authorized representative for time, effort, or out-of-pocket expenses related to research participation. Compensation may include monetary or non-monetary remuneration including payment in the form of cash or gift cards or other gifts/merchandise or services offered such as vouchers or course credit. Alternatively, reimbursement may include covering the costs of transportation, lodging, etc.

Recruitment activities - systematic efforts to announce, publicize, or advertise a research study seeking human research participation and/or efforts to encourage potential participants to enroll in a research study.

Recruitment materials - include advertisements/marketing, flyers, posters, scripts, social media or other internet postings, direct contact, phone (cold) calls, messaging, newspaper publications, radio or television broadcasting, or other media avenues.

Recruitment methods - encompass the use of materials, compensation, and other practices or procedures to inform potential participants about research opportunities.

Social Media - interactive platforms used by groups of people for electronic communication to interact, create, and/or share information. These platforms are typically internet-based and can be accessed via a web browser or an application. Examples of social media platforms include but are not limited to: X (formerly known as Twitter), Facebook, LinkedIn, TikTok, and Instagram.

Undue influence – an offer of an excessive or inappropriate reward or other overture in order to obtain compliance

References

1. 14CFR1230
2. 21CFR56
3. https://www.hhs.gov/ohrp/regulations-and-policy/guidance/guidance-on-engagement-of-institutions/index.html
4. Office of Human Research Protections Informed Consent FAQs
5. VCU IRB Guidance for Using Social Media to Recruit and Engage with Human Subjects for Research
6. Columbia Teacher's College – Recruiting Participants Through Social Media
7. Teacher's College IRB Guidance on Participant Compensation for Human Subjects Research
8. Advarra – IRB Review of Social Media Recruitment and Retention Programs
9. University of Pennsylvania – Recruitment of Human Participants
10. University of New Mexico – Compensating Participants
11. University of New Mexico – Advertisement and Recruitment for Human Research
12. University of Oregon – Compensation for Participation in Research

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